

25STCV38325 25STCV38325

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Case Number: 25STCV38325 Hearing Date: July 20, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

NATHAN REYES,

Plaintiff,

vs.

GENERAL MOTORS, LLC,

Defendant.

Case No.:

25STCV38325

Hearing Date:

July 20, 2026

Hearing Time:

2:00 p.m.

[TENTATIVE] ORDER

RE:

PLAINTIFF NATHAN REYES' DEMURRER TO DEFENDANT'S AMENDED ANSWER TO
PLAINTIFF'S COMPLAINT

Background

On December 30, 2025, Plaintiff
Nathan Reyes ("Plaintiff") filed this lemon law action against Defendant General
Motors, LLC ("GM"), alleging three causes of action under the Song-Beverly Act for
(1) breach of express warranty, (2) breach of implied warranty, and (3)
violation of section 1793.2(b).

Plaintiff alleges that

"[o]n March 28, 2023, Plaintiff acquired a new 2023 Chevrolet Traverse" and
"[t]he Vehicle was delivered to Plaintiff with serious defects and
nonconformities to warranty and developed other serious defects and
nonconformities to warranty including, but not limited to defects relating to
the Transmission system." (Compl., ¶¶ 6, 9.)

On February 4, 2026, GM
filed an answer to Plaintiff's complaint. On February 27, 2026, GM filed an
amended answer, setting forth twenty-four affirmative defenses.

Plaintiff now demurs to the
second through twenty-fourth affirmative defenses in GM's amended answer. GM opposes.
Plaintiff did not reply.

Legal Standard

"A party against whom an answer has been filed
may object, by demurrer as provided in Section 430.30,
to the answer upon any one or more of the following grounds: (a) The
answer does not state facts sufficient to constitute a defense. (b) The
answer is uncertain. As used in this
subdivision, 'uncertain' includes ambiguous and unintelligible. (c) Where
the answer pleads a contract, it cannot be ascertained from the
answer whether the contract is written or oral." (Code

Civ. Proc., § 430.20.) Every affirmative defense “shall be separately stated, and the several defenses shall refer to the causes of action which they are intended to answer, in a manner by which they may be intelligibly distinguished.” (Code Civ. Proc., § 431.30, subd. (g).)

“Demurring to an answer is a commonly recognized practice. [Citations.] Unlike the usual general demurrer to a complaint the inquiry is not into the statement of a cause of action. Instead it is whether the answer raises a defense to the plaintiff’s stated cause of action. [Citations.] A general demurrer raises the objection that the answer does not state facts sufficient to constitute a defense...” (Timberidge Enterprises, Inc. v. City of Santa Rosa (1978) 86 Cal.App.3d 873, 879-880 (internal quotations omitted).) As a general rule, defendants must allege facts in support of affirmative defenses. ((FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 384 (affirmative defenses “proffered in the form of terse legal conclusions, rather than as facts ‘averred as carefully and with as much detail as the facts which constitute the cause of action and are alleged in the complaint’” are not well pled and cannot survive a demurrer).)

“An important difference is that in the case of a demurrer to the answer, as distinguished from a demurrer to the complaint, the defect in question need not appear on the face of the answer. The determination of the sufficiency of the answer requires an examination of the complaint because its adequacy is with reference to the complaint it purports to answer... Another rule, particularly applicable to the case of a demurrer to the answer, is that each so-called defense must be considered separately without regard to any other defense. [Citations.] Accordingly, a ‘separately stated defense or counterclaim which is sufficient in form and substance when viewed in isolation does not become insufficient when, upon looking at the answer as a whole, that defense or counterclaim appears inconsistent with or repugnant to other parts of the answer.’” ((South Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 733-734.)

Discussion

Plaintiff demurs to every affirmative defense asserted in GM’s amended answer to Plaintiff’s complaint, except for the first.

A. GM's General Denial

As a preliminary matter, GM opposes

Plaintiff's demurrer generally, rather than discussing each affirmative defense.

GM asserts that its affirmative defenses may

be premised on a general denial because Plaintiff's complaint is not verified. GM

directs the Court to Code of Civil Procedure section

431.30 subdivision (d), which states that "[i]f the complaint ... is not

verified, a general denial is sufficient but only puts in issue the material

allegations of the complaint." However, general denials operate differently from

affirmative defenses. An affirmative defense is a "statement of any new matter

constituting a defense" (Code Civ. Proc., § 431.30,

subd. (d)), while a general denial is a blanket denial of the whole

complaint. ((Walsh v. West

Valley Mission Community College Dist. (1998) 66 Cal.App.4th 1532, 1545 ["The filing of a general denial denies in one sentence all the allegations of the complaint"].) Accordingly, this standard does not apply to GM's answer.

GM also asserts that the demurrer fails

because Plaintiff is on notice of GM's affirmative defenses. Because pleadings

are liberally construed, GM contends "[t]his is sufficient, as this is what is

required of defendant." (Opp., 5:2.) However, as noted above, merely placing a

plaintiff on general notice is insufficient; an answer must allege facts in

support of affirmative defenses, rather than legal conclusions.

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B.

Second to Fourth,

Sixth to Seventeenth, and Nineteenth to Twenty-Fourth Affirmative Defenses for Failure to State a Cause of Action

Plaintiff demurs to "Defendant's

Second (2) through Fourth (4), Sixth (6) through Seventeenth (17), and

Nineteenth (19) through Twenty-fourth (24) Affirmative Defenses [for] fail[ing]

to state facts sufficient to constitute a defense in violation of Code of Civil Procedure, Sections 430.20(a) or 431.30(b), or [for] uncertain[ity] under Code of Civil Procedure, Section 430.20(b)." (Dem., 3:24-27.)

GM opposes Plaintiff's contentions, stating that "Plaintiff's counsel seemingly assumes that 'ultimate facts' are equivalent to the evidence a party might produce at trial after depositions, written discovery, and any other fact finding tool used in the discovery process." (Opp., 3:23-25.) GM cites to *Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1098-1099, where the Court of Appeal stated that "[w]hile it is true that pleading conclusions of law does not fulfill th[e] requirement [to plead facts], it has long been recognized that [t]he distinction between conclusions of law and ultimate facts is not at all clear and involves at most a matter of degree. [Citations.] For example, the courts have permitted allegations which obviously included conclusions of law and have termed them ultimate facts or conclusions of fact. [Citations.] What is important is that the complaint as a whole contain sufficient facts to apprise the defendant of the basis upon which the plaintiff is seeking relief." (Internal quotations omitted, emphasis in original.) GM asserts that "by misconstruing the meaning of 'ultimate facts', Plaintiff's demurrer advocates that GM's Answer is subject to a higher pleading standard than what is required by law. Plaintiff's demurrer does not even attempt to identify how such defenses are purportedly defective beyond the blanket appeal that they lack specificity and fail to plead ultimate facts." (Opp., 4:5-8.)

GM avers that "Plaintiff's position is particularly inconsistent because, throughout the demurrer, Plaintiff repeatedly faults GM for allegedly failing to plead causation, failing to explain how certain conduct supports a defense, and failing to provide additional factual detail. In nearly every challenged affirmative defense, Plaintiff asks 'how' the alleged conduct constitutes the defense asserted, demands an explanation of causation, or insists on further factual elaboration. Yet Plaintiff's own Complaint does not come close to satisfying the standard he seeks to impose on GM. The Complaint merely references unspecified 'transmission defects' and offers no explanation whatsoever as to what those alleged transmission problems were, how they manifested, when they occurred, what symptoms Plaintiff experienced, or how they allegedly constituted a breach of warranty. Plaintiff cannot simultaneously demand

exhaustive factual explanations from GM's Answer while relying on a Complaint that provides only a conclusory reference to alleged 'transmission defects.'" (Opp., 4:9-19.)

The Court recognizes that the adequacy of an answer must be read "with reference to the complaint it purports to answer" (see *South Shore Land Co. v. Petersen*, supra, 226 Cal.App.2d at p. 733.), and, here, Plaintiff's complaint does not allege specific details about the transmission defect, the repairs Plaintiff's vehicle underwent, or how often or how many times Plaintiff's brought the vehicle in for repairs. Accordingly, the amended answer must be analyzed through the lens of the initial complaint's lack of specificity.

In support of the second affirmative defense (failure to allow a cure), GM alleges "that Plaintiff is barred from obtaining the relief sought in the Unverified Complaint because Plaintiff has failed and refused to allow GM a reasonable opportunity to cure any alleged breach by GM." (Answer, 2:17-19.) Plaintiff asserts that "[t]his defense is insufficient in that it is simply a legal conclusion and alleges no facts sufficient to constitute a defense." (Dem., 4:18-19.) GM does not support its assertion with facts. Accordingly, the Court sustains the demurrer to the second affirmative defense.

In support of the third affirmative defense (mitigation), GM alleges "that the damages alleged by Plaintiff, if any, are the result, in whole or in part, of Plaintiff's failure to exercise care to reduce or mitigate damages by conduct including Plaintiff's failure to timely present the vehicle for service or maintenance in connection with the alleged transmission defects." (Answer, 2:24-27.) Plaintiff asserts that "[a]lthough Defendant states that Plaintiff failed to timely present the Vehicle for service or maintenance in connection with the alleged transmission defects, Defendant fails to state how this assertion constitutes a failure to mitigate. Defendant also fails to define 'timely.'" (Dem., 5:6-8.) GM adequately asserts its affirmative defense because it alleges a specific fact, namely that Plaintiff failed to timely present the vehicle for service. Accordingly, the Court overrules the demurrer to the third affirmative defense.

In support of the fourth affirmative defense (unclean hands), GM alleges "Plaintiff is barred in whole or in part by Plaintiff's unclean hands from any and all legal or equitable

relief against GM, as requested in the Unverified Complaint or otherwise by conduct including changes or alterations to the vehicle's software and programming, and by Plaintiff's failure to timely present the vehicle for service or maintenance in connection with the alleged transmission defects." (Answer, 3:3-7.) Plaintiff asserts that "[a]lthough Defendant states that Plaintiff failed to timely present the Vehicle for service or maintenance in connection with the alleged transmission defects, Defendant fails to state how this assertion constitutes Unclean Hands. Defendant also fails to define 'timely.'" (Dem., 5:6-8.) GM adequately asserts its affirmative defense because GM alleges an ultimate fact, specifically that Plaintiff changed or altered the vehicle and failed to timely present the vehicle for service. Accordingly, the Court overrules the demurrer to the fourth affirmative defense.

In support of the sixth affirmative defense (laches), GM alleges "Plaintiff waited an unreasonable length of time to complain of the alleged acts or omissions at issue in the Unverified Complaint to prejudice GM by conduct including Plaintiff's failure to timely present the vehicle for service or maintenance in connection with the alleged transmission defects. The doctrine of laches therefore bars recovery." (Answer, 3:24-27.) Plaintiff asserts that "[a]lthough Defendant states that Plaintiff failed to timely present the Vehicle for service or maintenance in connection with the alleged transmission defects, Defendant fails to state how this assertion constitutes Laches. Defendant also fails to define 'timely.'" (Dem., 5:26-28.) GM does not support its assertion because it is unclear how the alleged failure to timely present the vehicle for service connects to the alleged "unreasonable length of time to complain of the alleged acts" at issue in the complaint. Accordingly, the Court sustains the demurrer to the sixth affirmative defense.

In support of the seventh affirmative defense (failure of performance), GM alleges "that any failure to perform the obligations as described in the Unverified Complaint resulted from Plaintiff's failure to perform as required by the contract and warranty by conduct including Plaintiff's failure to timely present the vehicle for service or maintenance in connection with the alleged transmission defects. Such performance by Plaintiff is a condition precedent to the performance of GM's obligations." (Answer, 4:3-7.) Plaintiff asserts that "[a]lthough Defendant states that Plaintiff failed to timely present the vehicle for service or maintenance in connection with the alleged transmission defects, Defendant fails to state how this constitutes a failure of performance. Defendant also

fails to define 'timely.'" (Dem., 6:8-10.) GM provides facts supporting that Plaintiff failed to perform under the contract and warranty by not timely presenting the vehicle for repairs. Accordingly, the Court overrules the demurrer to the seventh affirmative defense.

In support of the eighth affirmative defense (apportionment), GM alleges that "[a]ny and all injuries, if any, and damages, if any, allegedly sustained or suffered by Plaintiff was proximately caused and contributed to by the superseding, intervening acts or omissions of persons other than GM by conduct including changes or alterations to the vehicle's software and programming, and by Plaintiff's failure to timely present the vehicle for service or maintenance in connection with the alleged transmission defects. Those persons, and each of them, were careless and negligent concerning the matters alleged in the Unverified Complaint, and their negligence and carelessness proximately contributed to the loss, injury, damage, or detriment alleged in the Unverified Complaint, with the result that the damages, if any, recoverable by Plaintiff must be diminished in proportion to the fault attributable to those other persons." (Answer, 4:12-14.) Plaintiff asserts that "[t]his defense offers no factual support as to who purportedly 'contributed' to the alleged injuries suffered by Plaintiff, nor how these acts or omissions resulted in the injuries." (Dem., 6:12-13.) GM fails to discuss or explain the purported intervening cause. Accordingly, the Court sustains the demurrer to the eighth affirmative defense.

In support of the ninth affirmative defense (misuse of product), GM alleges that "[a]ny and all injuries, if any, and damages, if any, allegedly sustained or suffered by Plaintiff were directly and proximately caused and contributed to by the misuse of and the unreasonable and improper use of GM's product by conduct including changes or alterations to the vehicle's software and programming, and by Plaintiff's failure to timely present the vehicle for service or maintenance in connection with the alleged transmission defects. The misuse of or failure to use GM's product properly contributed to the loss, injury, damage, or detriment, if any, alleged in the Unverified Complaint, and the damages, if any, recoverable by Plaintiff must be diminished in proportion to the amount of fault attributable to that misuse or unreasonable or improper use." (Answer, 4:21-28.) Plaintiff asserts that "[a]lthough GM claims there were changes or alterations to the vehicle's software or programming, and that Plaintiff failed to timely present the vehicle for service or maintenance in connection with the alleged transmission defects, GM fails to state what these changes or alterations were,

what 'timely present' means, and how they constitute misuse of the product." (Dem., 7:1-4.) GM asserts that Plaintiff improperly used the vehicle by making changes or alterations, which alleges a fact. Accordingly, the Court overrules the demurrer to the ninth affirmative defense.

In support of the tenth affirmative defense (alteration of product), GM alleges that "[a]ny damage to the subject vehicle was caused or created by changes or alterations to the vehicle, after GM manufactured and sold the vehicle, by persons other than GM or any of its agents, servants, or employees, barring Plaintiff's recovery in this action." (Answer, 5:3-6.) Plaintiff asserts that "[t]his defense is insufficient in that it is simply a legal conclusion and alleges no facts sufficient to constitute a defense." (Dem., 6:6-7.) GM does not plead facts supporting its assertion that Plaintiff altered his vehicle. Accordingly, the Court sustains the demurrer as to the tenth affirmative defense.

In support of the eleventh affirmative defense (disclaimer), GM alleges "that before and at the time of the alleged acts, omissions, and conduct of GM alleged in the Unverified Complaint, GM had expressly disclaimed, negated, and excluded all warranties of the type alleged by Plaintiff, and of any type, express or implied, whatsoever, in connection with changes or alterations to the vehicle's software and programming." (Answer, 5:9-13.) Plaintiff asserts that "[a]lthough GM states that any damage to the vehicle was caused or created by 'unforeseen changes or alterations to the vehicle's software and programming', GM fails to indicate what these changes are and how they constitute an alteration of product. As such, this defense is ambiguous and otherwise uncertain since it is unclear what the effects of alleged alterations are." (Dem., 7:12-15.) As Plaintiff asserts, GM does not plead facts indicating what the changes are and how they constituted an alteration, making the answer ambiguous. Accordingly, the Court sustains the demurrer to the eleventh affirmative defense.

In support of the twelfth affirmative defense (lack of causation), GM alleges that "[n]o act or omission of GM was the cause in fact or the proximate cause of the alleged injuries and damages, if any, sustained by Plaintiff and instead caused by conduct including changes or alterations to the vehicle's software and programming, and by Plaintiff's failure to timely present the vehicle for service or maintenance in connection with the alleged transmission defects. GM is informed and believes, and therefore alleges, that any breach of warranty of fitness or

merchantability, if any, and any other breach of warranty, if any, and any breach of contractual undertakings by GM, if any, were neither the cause in fact nor the proximate cause of Plaintiff's damages. Rather, any alleged breach was only secondary, inconsequential, indirect and in no way contributed to or caused Plaintiff's alleged damages." (Answer, 5:16-24.) Plaintiff asserts that "[t]his defense is insufficient in that it is simply a legal conclusion and alleges no facts sufficient to constitute a defense." (Dem., 7:27-28.) However, GM pleads facts stating that it is due to Plaintiff's alleged alterations. Accordingly, the Court overrules the demurrer to the twelfth affirmative defense.

In support of the thirteenth affirmative defense (unauthorized use of the product), GM alleges "that any and all damages, if any, allegedly sustained or suffered by Plaintiff was proximately caused and contributed to by Plaintiff's unreasonable use of the subject vehicle for a purpose to which the subject vehicle was not intended to be used by conduct including changes or alterations to the vehicle's software and programming, and by Plaintiff's failure to timely present the vehicle for service or maintenance in connection with the alleged transmission defects. Plaintiff knew or should have known that the use to which Plaintiff put the vehicle was not the use for which the vehicle was manufactured or intended and that the unintended use could cause damage to Plaintiff." (Answer, 5:27-6:6.) Plaintiff asserts that "[t]his defense is insufficient in that it is simply a legal conclusion and alleges no facts sufficient to constitute a defense." (Dem., 8:10-11.) GM alleges facts stating that the unauthorized use of the product was due to modifications Plaintiff made to the vehicle. Accordingly, the Court overrules the demurrer to the thirteenth affirmative defense.

In support of the fourteenth affirmative defense (estoppel), GM alleges "that Plaintiff is estopped from obtaining the relief sought in the Unverified Complaint by virtue of Plaintiff's acts and conduct in connection with the matters alleged in the Unverified Complaint by conduct including changes or alterations to the vehicle's software and programming, and by Plaintiff's failure to timely present the vehicle for service or maintenance in connection with the alleged transmission defects." (Answer, 6:9-13.) Plaintiff asserts that "GM fails to state what these changes or alterations were, what 'timely present' means, and how these assertions constitute estoppel." (Dem., 9:2-3.) GM pleads facts sufficient to state an affirmative defense, and Plaintiff appears to seek a higher level of specificity than is necessary for the answer when read against the allegations in the

complaint. Accordingly, the Court overrules the demurrer to the fourteenth affirmative defense.

In support of the fifteenth affirmative defense (waiver), GM alleges “that Plaintiff has waived Plaintiff’s rights, if any, to obtain the relief sought in the Unverified Complaint by conduct including changes or alterations to the vehicle’s software and programming, and by Plaintiff’s failure to timely present the vehicle for service or maintenance in connection with the alleged transmission defects.” (Answer, 5:9-10.) Plaintiff asserts that “[t]his defense is insufficient in that it is simply a legal conclusion and alleges no facts sufficient to constitute a defense.” (Dem., 9:5-6.) GM provides facts stating how Plaintiff waived his rights. Accordingly, the Court overrules the demurrer to the fifteenth affirmative defense.

In support of the sixteenth affirmative defense (comparative negligence), GM alleges “that Plaintiff’s damages, if any, were the direct and proximate result of the conduct of Plaintiff or Plaintiff’s agents, employees, and invitees, in that they negligently, carelessly, recklessly, knowingly, and willfully operated, maintained, serviced, directed, and otherwise controlled all operations and maintenance of the subject vehicle by conduct including changes or alterations to the vehicle’s software and programming, and by Plaintiff’s failure to timely present the vehicle for service or maintenance in connection with the alleged transmission defects. Plaintiff’s damages, if any, were directly and proximately caused, in whole or in part, or were contributed to or aggravated by the conduct of Plaintiff or Plaintiff’s agents, employees, and invitees, when they negligently, carelessly, recklessly, knowingly, and willfully failed to repair the subject vehicle, knowing that the subject vehicle needed service, maintenance, or repair, but instead, proceeded to operate, maintain, navigate, direct, and otherwise make use of the subject vehicle or made improper and inadequate service, maintenance and repairs to it. GM is further informed and believes, and therefore alleges, that the subject vehicle owner knowingly and willfully authorized these actions and knowingly and willfully assumed the known risk that these actions would cause, compound, or aggravate the known problems with the subject vehicle and would proximately cause damage to it.” (Answer, 6:22-7:9.) Plaintiff asserts that “[t]his defense is insufficient in that it is simply a legal conclusion and alleges no facts sufficient to constitute a defense.” (Dem., 9:16-17.) GM provides a longer, more detailed answer, which includes facts that Plaintiff did not timely repair the vehicle

and Plaintiff modified it, evidence that Plaintiff could have been comparatively negligent for the vehicle's problems. Accordingly, the Court overrules the demurrer to the sixteenth affirmative defense.

In support of the seventeenth affirmative defense (assumption of risk), GM alleges that "[t]he risks and dangers in Plaintiff's conduct were known to Plaintiff, but Plaintiff conducted themselves in such a manner as to expose themselves and remain exposed to such risks and dangers and, by doing so, assumed all the risks attendant to that conduct including changes or alterations to the vehicle's software and programming, and by Plaintiff's failure to timely present the vehicle for service or maintenance in connection with the alleged transmission defects. At the time(s), date(s), and place(s) of the events described in the Unverified Complaint, Plaintiff voluntarily assumed the risks of the activities in which Plaintiff was then and there engaged. Under the circumstances and conditions then and there existing, the resulting injuries, if any, and damages, if any, sustained by Plaintiff were proximately caused by Plaintiff's own voluntary assumption of risk." (Answer, 7:12-20.) Plaintiff asserts that "[a]lthough GM claims there were changes or alterations to the vehicle's software or programming, and that Plaintiff failed to timely present the vehicle for service or maintenance in connection with the alleged transmission defects, GM fails to state what these changes or alterations were, what 'timely present' means, and how these assertions constitute assumption of the risk." (Dem., 10:5-8.) GM does not take the time to state the dates, times, and places of the events described in Plaintiff's complaint. Stating "[a]t the time(s), date(s), and place(s) of the events described in the Unverified Complaint..." lacks a basic level of specificity that an answer to a complaint requires. Even if Plaintiff's complaint lacks specifics, this should be noted, rather than inserting a boilerplate assertion. Accordingly, the Court sustains the demurrer to the seventeenth affirmative defense.

In support of the nineteenth affirmative defense (good faith belief in legality of actions), GM alleges that "GM acted in good faith and believes its actions to be legal." (Answer, 8:5-6.) Plaintiff asserts that "this defense is insufficient in that it is simply a legal conclusion and alleges no facts sufficient to constitute a defense." (Dem., 10:10-12.) GM does not support its assertion with support for why it has a good faith belief that it acted legally. Accordingly, the Court sustains the demurrer to the nineteenth affirmative defense.

In support of the twentieth affirmative defense (offset for use), GM alleges that it “intends to avail itself of the reduction authorized by Civil Code section 1793.2(d)(2)(C) if GM is found to violate the Song-Beverly Consumer Warranty Act.” (Answer, 8:9-10.) Plaintiff asserts that “this defense is insufficient in that it is simply a legal conclusion and alleges no facts sufficient to constitute a defense.” (Dem., 10:20-21.) GM’s allegations are insufficient because GM does not allege that Plaintiff utilized the vehicle. Accordingly, the Court sustains the demurrer to the twentieth affirmative defense.

In support of the twenty-first affirmative defense (implied warranty), GM alleges that “[e]ach and every cause of action based on breach of implied warranty is barred by Civil Code § 1791.1(c) to the extent that the subject vehicle’s express warranty had been breached by conduct including changes or alterations to the vehicle’s software and programming, and by Plaintiff’s failure to timely present the vehicle for service or maintenance in connection with the alleged transmission defects.” (Answer, 8:14-17.) Plaintiff asserts that “[t]his defense is insufficient, in that it is simply a legal conclusion and alleges no facts sufficient to constitute a defense.” (Dem., 11:3-4.) GM’s affirmative implied warranty defense appears convoluted and does not allege supporting facts that Plaintiff breached the express warranty, which, as GM contends, bars the implied warranty. GM rests its answer on a legal conclusion, not an ultimate fact. Accordingly, the Court sustains the demurrer to the twenty-first affirmative defense.

In support of the twenty-second affirmative defense (consent), GM alleges “[t]he repair process to the subject vehicle was appropriate and proper and is believed to have been done with Plaintiff’s consent.” (Answer, 8:20-21.) Plaintiff asserts that “Defendant states that GM repaired Plaintiff’s vehicle appropriately and properly with Plaintiff’s consent, but this defense is insufficient in that it is simply a legal conclusion and alleges no facts sufficient to constitute a defense.” (Dem., 11:10-12.) GM does not support why it believes it had Plaintiff’s consent, nor does it state how the vehicle was appropriately repaired. Accordingly, the Court sustains the demurrer to the twenty-second affirmative defense.

In support of the twenty-third affirmative defense (failure to provide notice), GM alleges “that Plaintiff failed to provide notice to GM pursuant to Civil Code section 1794(e)(3). Plaintiff is, therefore, barred from asserting the presumptions in Civil Code section 1793.22 and from recovering civil penalties pursuant to Civil Code section 1794(e).”

(Answer, 8:24-27.) Plaintiff asserts that “[t]his is simply a legal conclusion and alleges no facts sufficient to constitute a defense.” (Dem., 11:19.) GM does not support its assertion with any facts. Accordingly, the Court sustains the demurrer to the twenty-third affirmative defense.

In support of the twenty-fourth affirmative defense (failure to state a cause of action for civil penalties), GM alleges the “Complaint fails to state sufficient facts to warrant the imposition of civil penalties if replacement or repurchase of the subject vehicle was not appropriate under the circumstances then known, or if GM offered to repurchase or replace the subject vehicle.” (Answer, 9:3-5.) Plaintiff asserts that “this defense is insufficient in that it is simply a legal conclusion and alleges no facts sufficient to constitute a defense.” (Dem., 11:24-25.) GM does not support its assertion with any facts; it merely states a legal conclusion. Accordingly, the Court sustains the demurrer as to the twenty-fourth affirmative defense.

C. Fifth Affirmative Defense for Statutes of Limitation

Plaintiff asserts that GM's fifth affirmative defense is inadequately pled because it does not assert the proper subdivisions for its statute of limitations defense. Plaintiff relies on *Davenport v. Stratton* (1944) 24 Cal.2d 232, 246-247, where the Court stated that a pleading must specify both the applicable statute and subdivision. ((See *Ibid.* [“a plea of the statute of limitations, alleging that a cause of action is barred by the Code of Civil Procedure, section 339, is insufficient, since that statute contains several subdivisions”].) Moreover, Code of Civil Procedure section 458 states that “[i]n pleading the Statute of Limitations it is not necessary to state the facts showing the defense, but it may be stated generally that the cause of action is barred by the provisions of Section ____ (giving the number of the section and subdivision thereof, if it is so divided, relied upon) of the Code of Civil Procedure.”

However, GM's amended answer states various statutes with subdivisions. The amended answer explicitly states that “[b]ecause the Complaint does not provide sufficient facts to determine the timing of each of the type of claims that may be barred under this Chapter, Defendant asserts all these specific statute sections and specific subdivisions as affirmative defenses. Commercial Code § 2725(2) and (3) contain conditions regarding the parties' conduct that may change how the timing of certain conduct affects the application of

the statute.” (Answer 3:14-18.) Accordingly, the Court overrules the demurrer to the fifth affirmative defense.

D.

Eighteenth Affirmative

Defense for Qualified Third-Party Dispute Resolution Process

Plaintiff

demurs to GM’s eighteenth affirmative defense for not being a legally recognized affirmative defense. In support, Plaintiff merely states “[t]his is not a legally recognized affirmative defense, and therefore improper, and the demurrer to this defense must be sustained.” (Dem., 12:19-20.) Plaintiff provides the Court with no discussion, explanation, or law to support why this is not a legally recognized defense. Plaintiff only demurs to this affirmative defense for not being legally recognized. Accordingly, the Court overrules the demurrer to the eighteenth affirmative defense.

Conclusion

In light of the

foregoing, Plaintiff’s demurrer to the third, fourth, fifth seventh, ninth, twelfth, thirteenth, fourteenth, fifteenth, sixteenth, and eighteenth affirmative defense is **OVERRULED**. Plaintiff’s demurrer as to the second, sixth, eighth, tenth, eleventh, seventeenth, nineteenth, twentieth, twenty-first, twenty-first, twenty-second, twenty-third, and twenty-fourth affirmative defenses is **SUSTAINED**, with leave to amend.

GM is ordered to file and serve an amended answer, if any, within 20 days of the date of this Order.

Plaintiff is ordered to give notice of this Order.

DATED: July 20, 2026 _____

Hon. Teresa A.

Beaudet

Judge, Los

Angeles Superior Court